THE STATE
versus
JOSHUA MAPFUMO
and
THABANI MADAMBE (MADABE)
and
MONDLIWETHU MHLANGA

HIGH COURT OF ZIMBABWE
MUTEVEDZI & NDLOVU JJ
BULAWAYO 28 MAY 2026 & 25 JUNE 2026

M. Matanhire for the Appellants
T.C.Mujokoro for the Respondent

Criminal appeal judgment

MUTEVEDZI J: Two critical questions arise from this appeal. The first is whether or not an appellate court may extend its favourable decision to a person who did not participate in an appeal before it but was, at the trial, jointly charged with one whose appeal is under determination. The second question is whether or not an appellate court may exercise its reviews powers to review a decision previously certified by another judge on automatic review. As would be demonstrated in this judgment, and judging by the ages of available precedent, these are questions that have not fallen for the Supreme Court's or this Court's determination for significantly long periods.

Factual background

[1] Joshua Mapfumo and Thabani Madambe (hereinafter referred to as the first and second appellants respectively), were charged with the crime of assault as defined under s 89 of the Criminal Law (Codification and Reform) Act *[Chapter 9:23]* (the CODE). They were charged together with Mondliwethu Mhlanga (whom we shall, for convenience, refer to as the third accused). The three appeared before the court of a senior magistrate at Bulawayo. The allegations were that on 1 December 2025, acting in furtherance of a common design and at Emganwini shops, in Bulawayo, the trio had assaulted the complainant by striking him with fists and open hands as well as by pulling his genitalia. The background that led to the brawl was that the complainant and the first and second appellants were at *Food for Less* Shops, Emganwini, Bulawayo, when a misunderstanding arose between them. It led to a melee during which the first appellant allegedly assaulted the complainant using clenched

fists and open hands. The second appellant later joined in the assault and also struck the complainant with fists. The two were also alleged to have further manhandled the complainant by grabbing him by the shirt collar and pulling his private parts. Sometime after the assault had commenced, so the allegations went on, the third accused emerged on the scene and also assaulted the complainant once using with a clenched fist. As a result of the assault, the complainant sought medical attention and subsequently made a report to the police, leading to the arrest of the trio.

[2] At the trial, they all denied the allegations. The appellants argued that they never assaulted the complainant. Instead, they had only intervened to restrain him from assaulting his wife. The third accused did not only deny assaulting the complainant but said that he could not have done so because he was not present at crime scene.

Findings of the court a *quo*

[3] The court aquo properly identified and treated the two appellants' defence as that of private defence-commonly referred to as self-defence- and that of the third accused as the defence of an alibi. It concluded that the two appellants had not acted in self-defence. The learned senior magistrate's reasoning was that because the complainant and his wife (Tracy) had denied it, no unlawful attack had commenced or was imminent upon Tracy to justify the two appellants physically manhandling the complainant. In relation, to the third accused's alibi, the court aquo dismissed the defence on the ground that it had been discredited by state witnesses. In his/her judgment, the trial magistrate correctly reasoned as follows:

> "It is trite that wherever an alibi defense has been raised, the onus remains on the state to prove not only that alibi is false, but also that the accused was at the scene of crime and that he also participated in the manner alleged crime. In pursuit of answers to this question, I found the evidence of the complainant and that of the driver Simbarashe Ndlovu to be of relevance. I say this because the wife, Tracy said she did not see the 3rd accused committing the offence."

[4] At the conclusion of the trial, the court aquo convicted the trio and sentenced them each to 2 years' imprisonment, of which 9 months' imprisonment was suspended for 5 years on condition of future good behaviour. They were each left to serve an effective fifteen months' imprisonment.

Proceedings before this Court

[5] Aggrieved by the decision of the court aquo, the first and second appellants noted an appeal to this court. Although inelegantly couched, their grounds of appeal attacked the trial court's decision on the basis that the verdict of guilty was not in any way supported by the evidence on record. They also contended that the magistrate had mischaracterised their defences. For

those reasons, the appellants said the decision was so outrageous in its defiance of logic that no court acting reasonably could have ever arrived at such a conclusion.

State's concession

[6] At the hearing, Ms *Mujokoro*, who appeared for prosecution, conceded that the conviction of the appellants was unsupportable. The concession was, in the circumstances of the case, a proper one. The evidence of the complainant and his wife Tracy was clearly contrived. The case rested on their credibility or otherwise. Needless to state, the assessment of the credibility of witnesses is usually the province of the trial court. Yet the learned senior magistrate's reasoning was difficult to follow. For instance, whilst in one breadth, the magistrate chose to accept Tracy's testimony on the basis that she did not look like the type that could be intimidated by a husband and that she appeared an empowered and independent woman who was a teacher, he soon contradicted himself when he stated that: -

> "I am alive to the fact that all the witnesses are related to each other. I am alive to the fact that they have a symbiotic relationship with the complainant and that the complainant is **their master.** I am alive of the **subordination of the wife to the husband** and the **vulnerability of the employee** in relation to where his bread is buttered. I am also alive to the dangers of distortion of evidence that may arise from such relations." (Bolding is my emphasis.)

[7] Having stated the above, the magistrate was required to demonstrate how that danger had been obviated. She did not attempt to do so. Instead, she chose the easier route of accepting wholesale, the evidence of the couple. She did so, in the face of the apparently unbelievable testimonies of the complainant and his wife as shown by the appellants. Both appellants contested the complainant's version that they had both squeezed their bodies through the car's window at the same time and grabbed his privates simultaneously. In addition, the appellants provided evidence that a few months before this incident, the complainant and his wife had fought, in a bout of domestic violence. During that fight, Tracy had also allegedly grabbed the complainant's testicles and injured them. As such, the appellants argued that the complainant's injuries indicated on the medical report could as well have been caused by that assault which coincidentally, had been reported widely in the media. Both Tracy and the complainant could not properly refute those allegations. All that they could say was that the issue was a private affair. The magistrate was wrong to accept it as such because that assault was not only in the public domain but was also in the court records which the appellants consistently referred to. The two were unrepresented at trial. It must have occurred to the magistrate that they were directing the court to refer to its own records whose reference numbers it was given. It is settled law that a court is always permitted to

refer to its own records. That position was reinforced in *Mhungu v Mtindi* 1986 (2) ZLR 171 (SC) at 173A–B, where the Supreme Court held that:

> "In general, the court is always entitled to make reference to its own records and proceedings and to take note of their contents"

[8] With that in mind, we had no hesitation to accept the appellants' arguments and the subsequent concession by prosecution. We therefore set aside both the conviction and sentences in respect of the two appellants without much ado.

The conundrum

[9] The difficult issue which confronted us was in relation to the third accused person who was not a party to the appeal before us. The question was, having come to the conclusion that there was no assault at all against the complainant, could we simply turn a blind eye to the plight of the third accused and let an unsupportable conviction stand because he had not appealed against the conviction? Wouldn't doing so amount to a manifest injustice? We requested the views of counsels who appeared for the appellants and for the State. Whilst both were unanimous that the route open to us was to convert ourselves into a review court and review the decision of the court aquo in terms of s 29(4) of the High Court Act [*Chapter 7;07*]("the Act*"*), that route appeared firmly closed because the proceedings before us, had already been certified as being in accordance with real and substantial justice on automatic review by another judge of competent and equal jurisdiction.

[10] Faced with this dilemma, and in the exercise of the powers conferred on the High Court by s 29(2)(c) of the Act, we sought the views of the Prosecutor-General regarding the following: -

a. whether or not prosecution supported the conviction of the third accused
b. whether or not we could extend the favourable decision in respect of the two appellants to benefit the third accused and
c. whether or not it was possible for us to re-review the proceedings which our brother judge had already certified on automatic review.

[11] In her response, the Deputy-Prosecutor-General, Mrs *Takuva*, stated in no uncertain terms that the State's view was that if the conviction of the appellants was tenuous, then that of the third accused was simply untenable. She said: -

> "As regards the third accused, the complainant did not know him prior to the commission of the offence. The way he was identified was sketchy. The circumstances of his arrest could only have been testified to by the arresting detail as the complainant and his witness could not give sufficient detail surrounding the arrest of the third accused. Additionally, the complainant's statement to the police spoke of two assailants. It is not clear how the third accused was

> introduced into the fray. The third accused suffered injustice on two fronts. The conviction is not safe. The sentence also … was not in terms of acceptable precedent."

[12] Given the above, there is no doubt whatsoever in our minds, that the third accused is innocent and was therefore wrongly convicted. In addition to the crucial issues, which the Deputy Prosecutor-General raised, the trial magistrate clearly misconstrued the requirements of the defence of an alibi. The defence of alibi is a defence whereby an accused person asserts that he or she was elsewhere at the time the offence was committed and therefore could not have been the perpetrator. It is not a special defence that carries an evidentiary burden; rather, once raised, the prosecution retains the burden of proving beyond reasonable doubt that the accused was present and committed the offence. The requirements and principles governing an alibi defence are generally stated as follows:

i. The alibi should be raised at the earliest opportunity

An accused person is expected to disclose the alibi as soon as reasonably possible, particularly when first questioned or informed of the charge. The purpose is to afford the police an opportunity to investigate the claim. In *S* v *Musakwa* 1995 (1) ZLR 1 (S), the Supreme Court emphasized the importance of early disclosure of an alibi and criticized the failure by investigators to verify an alibi that had been raised from the outset.

ii. The accused must furnish sufficient particulars

iii. The accused bears no onus to prove the alibi

An alibi is not a special defence which places the burden of proof on an accused. Instead, the accused merely raises it. The burden remains on the State throughout to prove beyond a reasonable doubt that the accused was present and committed the offence. In *S* v *Mutandi* 1996 (1) ZLR 367 (H), the court held that:

> "There is no onus on the accused to prove his alibi; if on all the evidence there is a reasonable possibility that the alibi evidence is true, there must be the same possibility that he did not commit the crime, and the accused is entitled to be acquitted."

iv. The alibi need only be reasonably possibly true

The accused does not have to convince the court that the alibi is probably true. If there is a reasonable possibility that it may be true, the accused is entitled to an acquittal. In *R* v *Biya* 1952 (4) SA 514 (A)**,** approved in Zimbabwean jurisprudence including in *S* v *Mutandi* (supra)**,** the principle was stated as follows:

> "If, on all the evidence, there is a reasonable possibility that the alibi is true, there is a corresponding reasonable possibility that the accused did not commit the offence. "

[13] The third accused raised an alibi defence and stated that he was at school on the evening in question. That alibi was never investigated by the police. This omission is material and, in the circumstances, fatal to the State's case. Once an alibi is raised with sufficient particularity, the investigating authorities are obliged to make reasonable efforts to verify or disprove it. Failure to do so leave the reasonable possibility that the accused was not present at the scene and undermine the requirement for proof beyond reasonable doubt.

[13] What remained unanswered though, are the second and third questions as posed earlier. We pause here to state our views on the questions upfront. First, where an accused is convicted on the same tenuous evidential matrix as his co-accused who go on to appeal the conviction and succeed, different outcomes for the jointly charged persons cannot possibly ensue; second, the law allows the High Court, in the exercise of its appellate jurisdiction to extend, in appropriate circumstances, a favourable decision to a non-appealing accused person; third, prior confirmation of a conviction and/or sentence of an accused on automatic review cannot preclude an appellate court from interfering with a decision which has been shown to be manifestly unjust; and fourth, a judge, who certified proceedings on automatic review, or in his or her absence, any other judge, may withdraw his or certificate of confirmation where that becomes necessary.

The Law

[14] In a discussion such as this, the appropriate point of departure in determining the applicable law is the High Court Act particularly ss 29(4) and 41(h) thereof. They provide as follows:

> "**29 Powers on review of criminal proceedings**
> (1) …
> (2) …;
> (3) …
> (4) Subject to rules of court, the powers conferred by subsections (1) and (2) may be exercised whenever it comes to the notice of the High Court or a judge of the High Court that any criminal proceedings of any inferior court or tribunal are not in accordance with real and substantial justice, notwithstanding that such proceedings are not the subject of an application to the High Court and have not been submitted to the High Court or the judge for review."

Relatedly, s 41(h) of the Act provides as follows;

> "For the purposes of this Part, the High Court may, if it thinks it necessary or expedient in the interests of justice—
>
> (a) …
> (b) …
> (c) …
> (d) …

(e) …
(f) …
(g) …
(h) exercise any of the powers of review conferred upon the High Court by section *twenty-nine*:

[15] The legal questions which we specified above, must therefore be examined against the background of the above provisions. We turn to deal with them.

Whether the High Court, when sitting as an appellate court, may intervene in favour of a co-accused person who did not note an appeal,

[16] What is settled and which must be the starting point is that an appellate judgment does not automatically operate in favour of a non-appealing co-accused. A person who has not appealed is not, by that fact alone, an appellant before the court. It would therefore, be not only inaccurate but also inapposite to state the principle as one of automatic extension of appellate relief to a non-appealing litigant. The better view is that the High Court may, in an appropriate case, achieve that result through the exercise of an amalgamation of its appellate and statutory review powers. What the appeal does, is to bring the record of proceedings before the High Court. Once the Court becomes aware, as envisaged by s 29(4), from that record, that the proceedings against a non-appealing co-accused may not have been in accordance with real and substantial justice, it may not ignore the attendant defect(s) solely for the reason that the accused person did not file an appeal against it. The High Court is never a bystander or a spectator to an ongoing injustice. Judges sitting in an appeal must actively participate in redressing the injustice and not wait for the non-appealing and unrepresented accused to figure out how he/she will navigate the legal terrain. Under its broad powers of ensuring substantial justice, the Court can—and should—use the sum total of its review and appellate powers under the Act to quash the co-accused's conviction within the very same judgment that frees the appellant before it.

[17] I hold the above view because s 41(h) falls within Part VII of the Act which deals with criminal appeals. The entirety of the section confers supplementary powers on the Court when determining appeals. It appears to me, to permit the High Court, in the exercise of its appellate jurisdiction, to also exercise the powers of review conferred by s 29 of the same Act where it considers it necessary or expedient in the interests of justice. Section 41(h) therefore accords **additional review power** to the High Court when sitting as an appellate court. It is the bridge which joins the appellate proceedings properly before the High Court and its wider review powers in relation to the proceedings of the inferior court.

[18] The significance of section 41(h) is that it prevents the appeal court from being confined to a narrow and technical view of the appeal where the record discloses a broader injustice. It allows the court, in the interests of justice, to invoke review powers where the defect revealed by the appeal is not limited to the appellants but equally extends to a co-accused who was convicted on the basis of the same insufficient evidence, the same unsupportable reasoning or the same legal error. Given the wide powers of review outlined in s 29, the High Court is allowed to intervene on its own motion, and extend the benefit of an acquittal to a non-appealing accused, in order to prevent a grave miscarriage of justice. Section 29(4) speaks to the exercise of review powers whenever it comes to the notice of the High Court or a judge of the High Court that criminal proceedings of an inferior court or tribunal are not in accordance with real and substantial justice.

[19] The above approach found support in the case of *S* v *Chawira* HH-42-12 at p 7, where UCHENA J, (as he then was), accepted that s 41(d) and (h), read together with s 29 of the Act, gives the High Court supplementary powers to deal with a situation arising in an appeal. His Lordship stated that: -

> "While it is correct that this court has inherent jurisdiction and can use it to refer this case back to the trial court for trial *de novo*, s 41(d) and (h) as read with s 29(2)(b)(v) of the High Court Act gives this court supplementary powers to deal with a situation such as has arisen in this case."

[20] The above authority confirms that the High Court, in the exercise of its appellate jurisdiction, may rely on the review powers conferred by the Act where the interests of justice require it to do so. While Zimbabwe has not codified a rule which expressly extends favourable appellate outcomes to non-appealing co-accused, other jurisdictions have enactments to that effect. In the case of *Lim v Court of Appeals, G.R. No. 147524 (2006)*, the Supreme Court of the Philippines relied on s 11(a) of the Revised Rules of criminal Procedure which states that: -

> "An appeal taken by one or more of several accused shall not affect those who did not appeal, except insofar as the judgment of the appellate court is favourable and applicable to the latter."

The court proceeded in the above matter, to hold that where the evidence against a co-accused is inextricably linked to that of an appellant, an acquittal on appeal, in favour of one must extend to the other, even if he did not appeal. That principle, though admittedly foreign in origin, resonates with the universal logic of fairness. It finds a natural home in the review powers given to the High Court by law. It must follow therefore, that the High Court has a statutory discretion, grounded in s 41(h) as read with section 29 of the Act, to

intervene where the appeal record discloses that the proceedings against the non-appealing co-accused were not in accordance with real and substantial justice. The power is discretionary and exceptional. It must be exercised sparingly and judiciously. It may only be resorted to in circumstances where the record of proceedings demonstrates that intervention is necessary to secure real and substantial justice.

[21] In my view, this is a proper case for this Court's intervention. To acquit the two appellants and leave the third accused who was convicted on the strength of the same evidential record would occasion an obvious injustice and undermine the interests of fairness and consistency in the administration of justice. As demonstrated above, the law, through s 41(h) read together with s 29 of the Act, empowers us to intervene on review where a miscarriage of justice is apparent during the determination of an appeal.

Whether a bench of two judges sitting on appeal may re-review or interfere with proceedings certified by another judge on automatic review

[22] We have already stated that the appellants and the third accused were all not legally represented at their trial in the court aquo. The proceedings were therefore subject to automatic review in terms of s 57 of the Magistrates Court Act *[Chapter 7:10]* (the MCA). They were duly certified as being in accordance with real and substantial justice before the hearing of this appeal. We held earlier that such certification is not a bar to the Court's subsequent review conducted in the exercise of its appellate jurisdiction. We took that position from the perspective that there is a distinction between the two. In fact, there are three ways in which criminal proceedings from the magistrates Court may be reviewed by the High Court. The first is in terms of s 57 of the MCA. The second is on application by an aggrieved party in terms of r 62 of the High Court Rules, 2021. The third is borne out of appeal proceedings. What that means is that although they are related, automatic review and review pursuant to an appeal are not the same. My understanding is that on one hand, an automatic review is an administrative and supervisory process primarily directed at determining whether the proceedings of the lower court appear, on the face of it, to be in accordance with real and substantial justice. The automatic review certificate is not a final, unalterable judgment that blocks future intervention. On that basis, two judges presiding over an appeal are at liberty to override or by-pass the initial confirmation by a single judge on automatic review. That course is enabled by three key legal principles the first of which relates to the broad powers of the Court under s 29(4) of the Act. The second relates to judicial pecking order and significance of decisions. On one hand, the certification of

proceedings on automatic review, is typically done by a single judge in chambers after simply perusing the proceedings for blatant or glaring errors. On the other, a criminal appeal panel, consists of two High Court judges, sitting as a court. In terms of judicial hierarchy and weighting, the finding of a two-judge panel – supported by exhaustive arguments presented during a formal hearing on appeal, must necessarily outweigh, the administrative, single judge certification. Third, and as already hinted, a certificate issued on automatic review simply means that, **on the face of the record at that time**, the proceedings appeared regular. It is never intended to create a state of *res judicata,* for the non-appealing individual, in circumstances where it later becomes apparent that the core legal foundation of the conviction was fatally flawed. The law requires that procedural technicalities must always yield to the quest for substantial justice. See the case of *Jane Linda Rose v The State* HH71-12.

[23] An appeal, is a direct challenge to the correctness of the conviction, sentence or order appealed against. Accordingly, the fact that the proceedings were previously confirmed on automatic review cannot, by itself, prevent an appellate bench from later on, interfering with the conviction or sentence. Critically, the judges presiding over an appeal do not sit as an appellate court over the reviewing judge's certificate but as the High Court in the exercise of its appellate jurisdiction over the proceedings of the inferior court. Where necessary, the appellate court resorts to using its supplementary review powers in relation to the proceedings of the inferior court.

[24] My views derive credence from the case of *S* v *Malunga* 1990 (1) ZLR 124 (H). In that case, the High Court was faced with an appeal where the sentence had already been confirmed on automatic review. The court nevertheless held that the confirmation did not make the appeal a mere formality. GIBSON J and CHIDYAUSIKU J (later CJ), observed that:

> "I think also, that the Legislature envisages the possibility that there may sometime, occur this divergence in the decisions of this court. The parallel existences of ss 26 and 28 of the High Court Act, 1981, bestowing the review powers, and s 36 enabling the court to hear appeals from magistrates' courts, in sentencing matters, or generally where there is special provision in the Act, is evidence of this."

THEIR LORDSHIPS further stated that:

> "If the court were merely to deal with an appeal against sentence as a formality because the sentence had been confirmed on review, that would be improper and would amount to a denial to an appellant of his rights and expectations under the law. The power of the court on appeal against sentence is not merely illusory."

[25] The importance of *S* v *Malunga* (*supra*), must not be lost. It recognised the functional distinction between a judge acting on automatic review and a bench exercising appellate jurisdiction. A certificate of confirmation issued on automatic review is not equivalent to an appellate judgment dismissing an appeal. It does not finally determine every issue that may later arise on appeal, especially where argument by legal practitioners, fuller research or closer scrutiny of the record reveals a material defect.

Whether a judge may withdraw a certificate of confirmation issued in automatic criminal review proceedings.

[26] Interestingly, in *S v Malunga*, and upon noticing that the proceedings it was dealing with on appeal had previously been certified by another judge on automatic review, the Court approached the reviewing judge and requested him to withdraw his certificate. Although the reviewing judge declined to do so, what is important is that the case demonstrates that the withdrawal of a confirmation certificate issued on automatic review is permissible. The certificate, is not in all circumstances, immune from withdrawal. Although statute does not expressly set out a detailed procedure for the withdrawal of such a certificate, the High Court's review jurisdiction is guided by the broader requirement that criminal proceedings must be in accordance with real and substantial justice. Whether a matter comes before the High Court by way of automatic review under s 57 of the Magistrates Court Act, or by way of review under the High Court Act, or through the appeal process, the essential question remains whether the proceedings were in accordance with real and substantial justice. A certificate of confirmation cannot therefore be treated as an absolute bar to correction, where it later appears that the proceedings were afflicted by an irregularity, mistake or material fact which would have justified withholding confirmation. JR Rowland in *Criminal Procedure in Zimbabwe* (1997) on p. 26-6, states that:

> "In a proper case, a judge's certificate of confirmation may be withdrawn, either by himself or where he is not available, by another judge. Examples of when it would be proper to do so include;
> a. Where it is subsequently found that there has been an irregularity in the proceedings or as mistake
> b. Where facts are discovered which, if known, would have resulted in the original certificate being withheld."

[27] The position had also earlier been clearly stated in *S* v *Moyo* (1) 1978 RLR 316 at 322–323, where the court accepted that a certificate of confirmation may be withdrawn in a proper case by the judge who issued it, or in his or her absence, by another Judge. See also

the cases of *R* v *Hughes* 1969 (2) RLR 515 (G); 1970 (1) SA 158 (R); *S* v *Maseko* 1971 (4) SA 475 (T)

But if the principle required support from the modern era, it got the seal of approval in the case of *S v Nyathi* HB90-2003, where the court held that:

> "Such a withdrawal [of the certificate] is merited where it is shown, first, that there has been an irregularity in the proceedings or a mistake. Second, where facts are discovered which, if known at the time of the initial review, would have resulted in the original certificate being withheld."

[28] What is important from the above decisions, is that the courts recognise and confirm that the principle of finality may sometimes be subordinated to the more fundamental requirement that an accused person should not remain subject to proceedings or punishment that are not in accordance with real and substantial justice.

[29] In light of the above, a judge may lawfully withdraw a certificate of confirmation issued during automatic review proceedings, where sufficient cause for doing so is shown, such as an irregularity, mistake or the discovery of material facts which would have necessitated the withholding of the certificate in the first place. Needless to state, the power must, however, be exercised with great circumspection. It does not follow that every certificate of confirmation may be reopened merely because a different view of the matter is later formed. The proper test is whether the circumstances show that the proceedings were not in accordance with real and substantial justice, or that the certificate would not have been issued had the relevant irregularity, mistake or material fact been known at the time of confirmation.

[30] In the present case and in consultation with the Judge President of the High Court, who shared the same views as ours, we requested our brother M. DUBE J, who had initially certified the proceedings to- at his utmost discretion- withdraw his certificate given the deficiencies afflicting the proceedings which we pointed out above. He graciously accepted and withdrew his confirmation certificate. The withdrawal cleared the way for us to review the proceedings without any impediment. The third accused's conviction was built on grave doubt as to whether or not the complainant was ever assaulted, disputed identification and an unassailable *alibi*. Those gaps led to the acquittal of the appellants who were his co-accused on the same record. The principle in *Malunga* and all the other authorities we stated above, therefore applies with equal force in the case of the third accused. This Court was entitled indeed if not obliged to revisit his conviction and review it like we did, despite prior confirmation.

[31] In the end, the law and the facts converge on a single conclusion. As with the appellants, the conviction of the third accused cannot stand. It is unsafe and must therefore be set aside. The appellants were entitled to the benefit of doubt, and the third accused, who did not appeal is equally, if not more entitled to the benefit of that same doubt. Accordingly, we order as follows: -

a. The first and second appellants' appeal against conviction succeeds
b. The judgment of the court aquo convicting the appellants of the charge of assault be and is hereby set aside and in its place is substituted the following: -
"Both the first and second accused persons are found not guilty and are acquitted."
c. After review, the conviction of the third accused (Mondliwethu Mhlanga) be and is hereby quashed and in its place is substituted the following
"*The third accused is found not guilty and is acquitted."*
d. For the avoidance of doubt and by operation of law, the sentences imposed on both the appellants and the third accused person stand vacated.

MUTEVEDZI J……

NDHLOVU J……. I Agree

Matanhire Law Chambers, appellant's legal practitioners

National Prosecuting Authority, respondent's legal practitioners